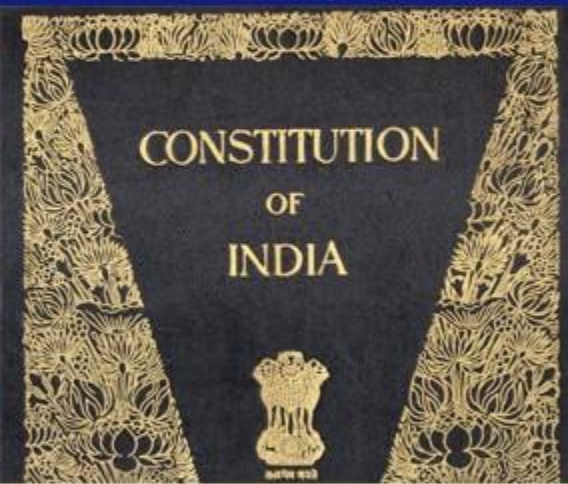


INDIAN POLITY

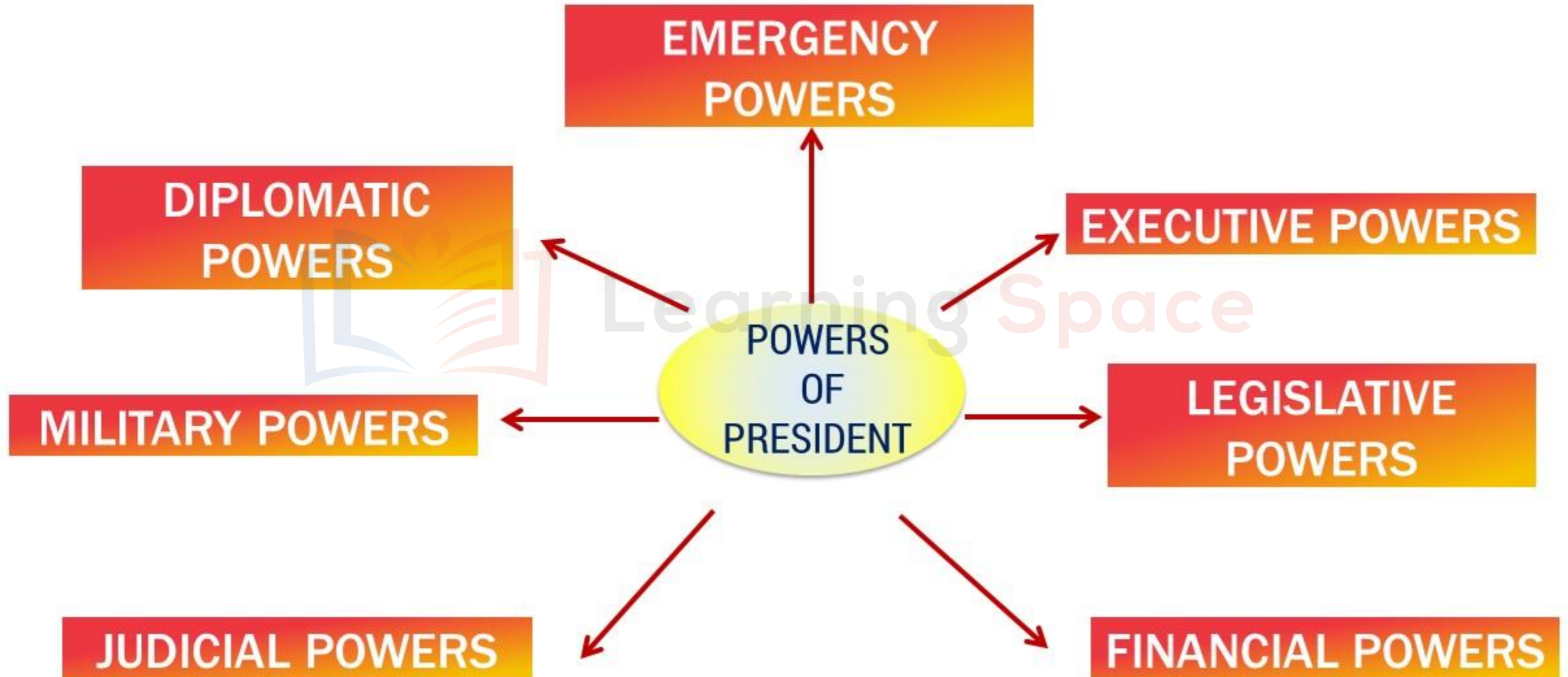


MODULE - 54

THE PRESIDENT
POWERS & FUNCTIONS

INDIAN PRESIDENT

POWERS AND FUNCTIONS

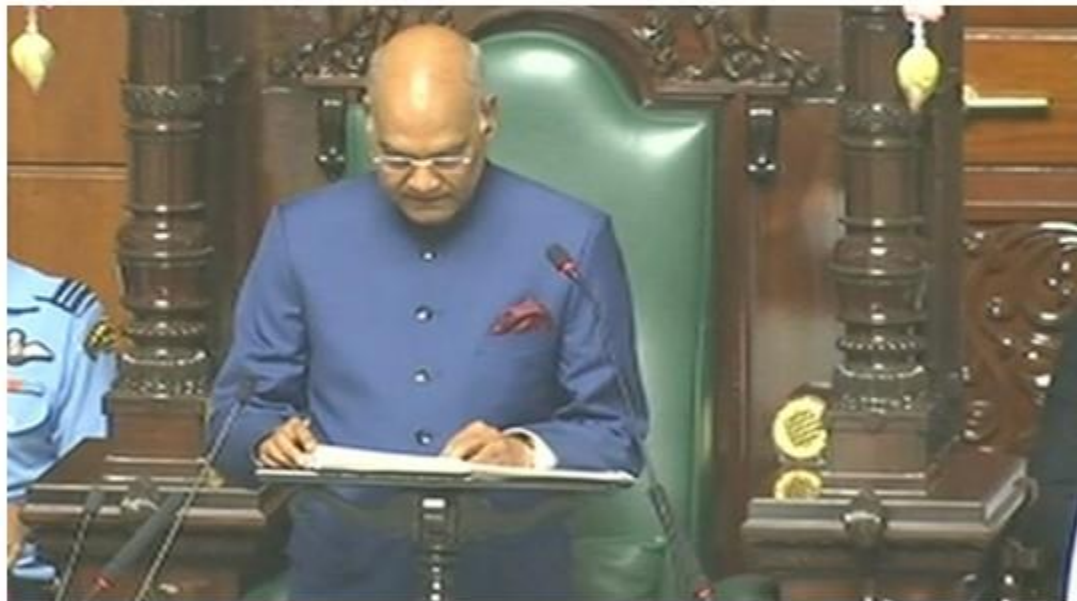


INDIAN PRESIDENT

POWERS AND FUNCTIONS

1

EXECUTIVE POWERS



1 All executive actions of the Government of India are formally taken in his name.

2 He can make rules specifying the manner in which the orders and other instruments made and executed in his name shall be authenticated.

3 He can make *rules for more convenient transaction of business of the Union government*, and for allocation of the said business among the ministers.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

1

EXECUTIVE POWERS

4 He appoints the prime minister and the other ministers. They hold office during his pleasure.

5 He appoints the attorney general of India and determines his remuneration. The attorney general holds office during the pleasure of the President.

6 He appoints

- the comptroller and auditor general of India,
- the chief election commissioner and other election commissioners,
- the chairman and members of the Union Public Service Commission,
- the governors of states,
- the chairman and members of finance commission.

INDIAN PRESIDENT

1

the Prime Minister
and the other
ministers.

2

Attorney general of
India and
determines his
remuneration.

3

Comptroller and
Auditor General of
India (CAG)

4

the Chief Election
Commissioner and
other Election
Commissioners

5

Chairman and
Members of the
Union Public
Service
Commission

6

the Governors of
States

7

Chairman and
Members of
Finance
Commission

8

Special Officer for
linguistic minorities

The President
appoints

INDIAN PRESIDENT

POWERS AND FUNCTIONS

1

EXECUTIVE POWERS

- 7 He can *seek any information* relating to the administration of affairs of the Union, and proposals for legislation from the prime minister.
- 8 He can *require the Prime Minister to submit, for consideration of the council of ministers*, any matter on which a decision has been taken by a minister but, which has not been considered by the council.
- 9 He can appoint a commission to investigate into the conditions of *SCs, STs and other backward classes*.
- 10 He can appoint an *inter-state council* to promote Centre-state and inter- state cooperation.
- 11 He *directly administers the union territories* through administrators appointed by him.
- 12 He can *declare any area as scheduled area* and has powers with respect to the administration of scheduled areas and tribal areas.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

2

LEGISLATIVE POWERS

1 He can *summon or prorogue* the Parliament and dissolve the Lok Sabha

2 He can *summon a joint sitting* of both the Houses of Parliament, which is presided over by the Speaker of the Lok Sabha.

3 Address the Parliament at the *commencement of the first session after each general election* and the first session of each year.



4 He can *send messages to the Houses* of Parliament, whether with respect to a bill.

5 Appoint *any member of the Lok Sabha to preside over* its proceedings when the offices of both the Speaker and the Deputy Speaker fall vacant.

6 Appoint *any member of the Rajya Sabha to preside over* its proceedings when the offices of both the Chairman and the Deputy Chairman fall vacant.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

2

LEGISLATIVE POWERS

7 He *nominates 12 members of the Rajya Sabha* from amongst persons having special knowledge or practical experience in literature, science, art and social service.

8 He can *nominate two members to the Lok Sabha* from the Anglo-Indian Community.

9 He decides on questions as to *disqualifications of members of the Parliament*, in consultation with the Election Commission.

10 His prior recommendation or *permission is needed to introduce certain types of bills* in the Parliament.
Eg: Bill for the alteration of boundaries of states.

LEGISLATIVE
POWERS

INDIAN PRESIDENT

POWERS AND FUNCTIONS

2

LEGISLATIVE POWERS

President's power on a bill passed by Parliament

11 When a bill is sent to the President after it has been passed by the Parliament, he can:

- I. *Give his assent* to the bill
- II. *Withhold his assent* to the bill
- III. *Return* the bill (if it is not a money bill) for reconsideration of the Parliament.

However, if the bill is passed again by the Parliament, with or without amendments, the President has to give his assent to the bill.

President's power on a bill passed by State Legislature

12 When a bill passed by a state legislature is reserved by the governor for consideration of the President, the President can:

- i. Give his assent to the bill
- ii. withhold his assent to the bill
- iii. direct the governor to return the bill (if it is not a money bill) for reconsideration of the state legislature.

It should be noted here that it is not obligatory for the President to give his assent even if the bill is again passed by the state legislature and sent again to him for his consideration.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

2

LEGISLATIVE POWERS



ORDINANCE

Another great legislative power of President- Article 123!

13

- He can *promulgate ordinances* when the Parliament is not in session.
- These ordinances must be approved by the Parliament within six weeks from its reassembly.
- He can also withdraw an ordinance at any time.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

2

LEGISLATIVE POWERS



सत्यमेव जयते

UPSC



14

He lays the reports of the Comptroller and Auditor General, Union Public Service Commission, Finance Commission, and others, before the Parliament.

15

He can make regulations for the peace, progress and good government of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli and Daman and Diu.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

3

FINANCIAL POWERS

1

Money bills can be introduced in the Parliament only with his prior recommendation.

2

He causes to be laid before the Parliament the *annual financial statement* (i.e., the Union Budget).

FINANCIAL POWERS



4

He can make advances out of the *contingency fund of India* to meet any unforeseen expenditure.

5

He constitutes a *Finance Commission* after every five years to recommend the distribution of revenues between the Centre and the states.

3

No *demand for a grant* can be made except on his recommendation.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

4

JUDICIAL POWERS



1 He appoints the Chief Justice and the *judges of Supreme Court and High Courts*.

2 He can seek *advice from the Supreme Court* on any question of law or fact. However, the advice tendered by the Supreme Court is not binding on the President.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

4

JUDICIAL POWERS



Pardoning Power- Article 72!

3

He can grant pardon, reprieve, respite and remission of punishment, or suspend, remit or commute the sentence of any person convicted of any offence:

- i. In all cases where the punishment or sentence is by a *court martial*
- ii. In all cases where the punishment or sentence is for an offence against *a Union law*
- iii. In all cases where the sentence is a *sentence of death*.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

5

DIPLOMATIC POWERS



- 1 The international treaties and agreements are negotiated and *concluded on behalf of the President.*
- 2 However, they are subject to the approval of the Parliament.
- 3 He represents India in international forums and affairs and *sends and receives diplomats like ambassadors, high commissioners, and so on.*

INDIAN PRESIDENT

POWERS AND FUNCTIONS

6

MILITARY POWERS



- 1 He is the *supreme commander of the defence forces* of India.
- 2 In that capacity, he appoints the chiefs of the Army, the Navy and the Air Force.
- 3 He can *declare war or conclude peace*, subject to the approval of the Parliament.

INDIAN PRESIDENT

POWERS AND FUNCTIONS

7

EMERGENCY POWERS



In addition to the normal powers mentioned above, the Constitution *confers extraordinary powers* on the President to deal with the following three types of emergencies :

- a) National Emergency (Article 352)
- b) President's Rule (Article 356 & 365)
- c) Financial Emergency (Article 360)

INDIAN PRESIDENT

POWERS AND FUNCTIONS

Three important powers of the President which we shall deliberate in detail in the forthcoming modules are:

1. *Veto Power- Article 111*
2. *Ordinance Making Power- Article 123*
3. *Pardoning Power- Article 72*



INDIAN PRESIDENT

POWERS AND FUNCTIONS

PRESIDENT'S VETO POWER



1 A bill passed by the Parliament can *become an act only if it receives the assent of the President.*

2 When such a bill is presented to the President for his assent, he has three alternatives:

1. He may give his assent to the bill
2. He may withhold his assent to the bill
3. He may return the bill (if it is not a Money bill) for reconsideration of the Parliament.

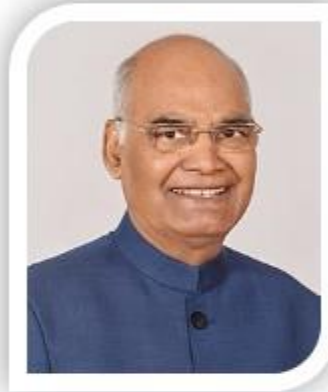
3 However, if the bill is passed again by the Parliament with or without amendments and again presented to the President, the President must give his assent to the bill.

4 Thus, *the President has the veto power over the bills passed by the Parliament, that is, he can withhold his assent to the bills.*

INDIAN PRESIDENT

POWERS AND FUNCTIONS

PRESIDENT'S VETO POWER



Bill of Parliament



YES

WITHHOLD

VETO

RECONSIDERATION

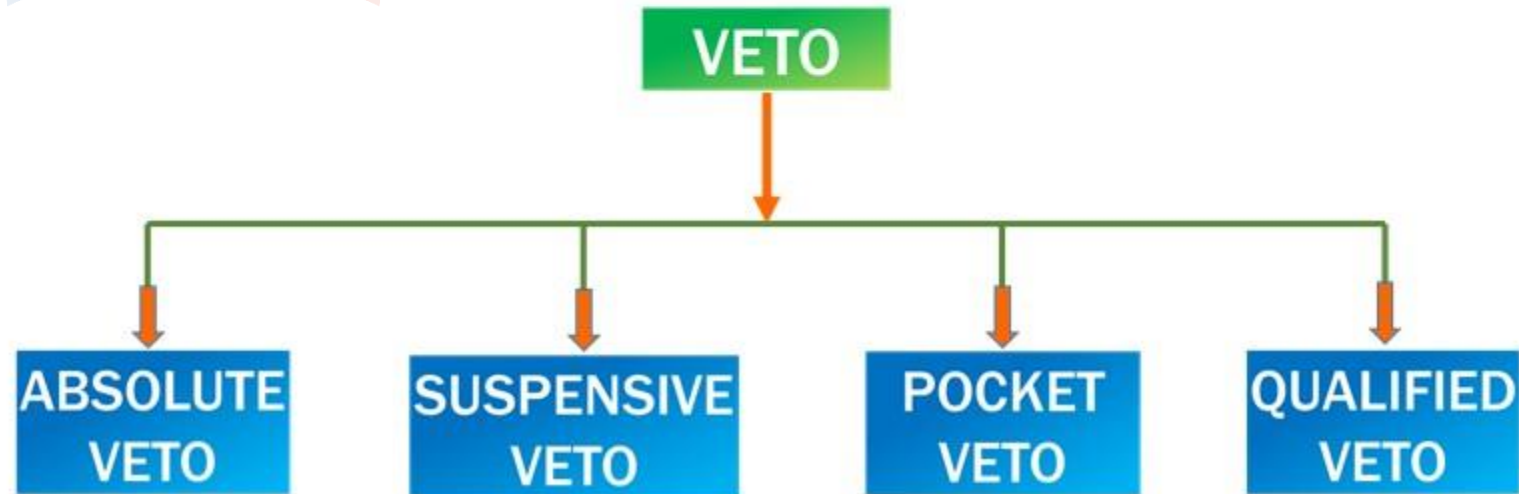
INDIAN PRESIDENT

POWERS AND FUNCTIONS

PRESIDENT'S VETO POWER



- 5** The object of conferring this power on the President is two-fold :
- a) To prevent *hasty and ill-considered legislation* by the Parliament
 - b) To prevent a legislation which may be *unconstitutional*.



INDIAN PRESIDENT

POWERS AND FUNCTIONS

PRESIDENT'S VETO POWER



6 The veto power enjoyed by the executive in modern states can be classified into the following four types:

1. **Absolute veto**, that is, withholding of assent to the bill passed by the legislature.
2. **Qualified veto**, which can be overridden by the legislature with a higher majority.
3. **Suspensive veto**, which can be overridden by the legislature with an ordinary majority.
4. **Pocket veto**, that is, taking no action on the bill passed by the legislature.

7 Of the above four, the President of India is vested with three: Absolute veto, Suspensive veto & Pocket veto.

8 There is no qualified veto in the case of Indian President; it is possessed by the American President.

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